



Purolator Inc.

Ecosystem Corporate Membership Agreement
Supply Chain

This Corporate Membership Agreement (“Agreement”) is made effective as of **December 15, 2021** (“Effective Date”), by and between Purolator Inc., whose principal office is located at 2727 Meadowpine Blvd, Mississauga, ON (hereinafter “CLIENT”), and **Plug & Play, LLC**, a California limited liability company (also doing business as “Plug and Play Tech Center”) whose principal office is located at 440 N. Wolfe Rd., Sunnyvale, CA 94085 (hereinafter “Plug and Play”). Plug and Play and CLIENT hereinafter jointly referred to as the “Parties” and individually to as the “Party.”

1. The Scope of the Agreement:

CLIENT is seeking a deeper engagement with Plug and Play to achieve the following objectives:

- Drive business growth opportunities for CLIENT through partnership, pilots, acquisition, or investment in startups
- Establish CLIENT as an innovation leader in the Supply Chain space

To ensure CLIENT’s success as a strategic member of Plug and Play’s ecosystem, Plug and Play will provide the services described in this Agreement.

1.1. Ecosystem Membership—Supply Chain

- 1.1.1. The execution of the Agreement will grant CLIENT a status of “Eco Member” of Plug and Play Silicon Valley.
- 1.1.2. As Eco Member, CLIENT will pay the fees described in **Exhibit A** and benefit from the services listed in Section 2.

2. Ecosystem (Eco) Member Benefits— Supply Chain

As an Ecosystem (Eco) Member, CLIENT will receive the following:

2.1. Sourcing and Startup Introductions

- 2.1.1. Private Deal Flow Sessions: Plug and Play will facilitate private introductions based on CLIENT’s business challenges between CLIENT and startups from all programs through Deal Flow Sessions—up to six (6) per year.

Administrative details of the Deal Flow Session:

- a) Plug and Play will deliver a pre-screened list of 8-10 companies to CLIENT before each session to select the top six (6) companies. Of the six (6) companies chosen by CLIENT, Plug and Play will arrange for CLIENT to review four (4) companies during a two-hour session. Plug and Play will need four (4) weeks notice in order to deliver this pre-screened list to CLIENT.

- b)** Each of the selected companies will present to CLIENT for 30 minutes followed by open discussions between startups and CLIENT.
- c)** If CLIENT or any of its employees, contractors or representatives are unable to attend the Deal Flow Session in person, Plug and Play will arrange a virtual or extended Deal Flow Session to accommodate CLIENT's schedule.

2.1.2. Ad-Hoc Introductions: Plug and Play will make ad-hoc introductions to startups as new opportunities arise during the term of the Agreement.

2.1.3. Playbook: During the Term of the Agreement, CLIENT will have access to the virtual platform created and developed by Plug and Play called "Playbook". Playbook is exclusively for Plug and Play corporate members and is Plug and Play's proprietary innovation software that allows corporate members to easily track engagement with startups and includes a database of over twenty thousand (20,000) startup profiles. In order for CLIENT to use Playbook, CLIENT and its representative(s) must first agree to the Terms and Conditions which can be found here:

2.2. Events & Workshops

CLIENT's representatives are invited to participate at all Supply Chain events and workshops. Plug and Play will provide:

2.2.1. EXPOs: EXPOs take place at the conclusion of each batch, and are held twice a year. Each EXPO involves 40+ startup companies who each present for three minutes in front of 150+ corporate and VC judges to compete to be selected as the top three winners. Each EXPO has startup pitches, panelist discussions, and keynote speeches focused on the current accelerator program that is running. Attendance typically ranges between 300-500 entrepreneurs, developers, corporations, investors, governments, and universities. CLIENT will receive the following benefits at each event. CLIENT will receive the following benefits at each event:

- a)** Distinction as a VIP Judge
- b)** 3-5 minute speaking slot at one event (longer keynotes considered depending on topic and speaker)

2.2.2. Mentorship Sessions: During the course of the acceleration programs, Plug and Play hosts weekly, one to two hour mentorship sessions with startups, hosted by either a VC, corporate or service partner. CLIENT will have the opportunity to demonstrate and promote their technology focus areas and engage closely with the startups.

2.3. Community, Branding & Marketing

2.3.1. By having a branded presence at Plug and Play, CLIENT will have the opportunity to reach Silicon Valley companies beyond the technology startups that CLIENT is introduced to through Deal Flow Sessions. To fully integrate CLIENT into the Plug and Play platform, Plug and Play will provide:

- a) Public Relations: CLIENT and Plug and Play will work together to submit a press release announcing the collaboration. Additionally, This collaboration will be promoted at over 300 of Plug and Play's events and event materials
 - These events attract startups and provide marketing exposure for CLIENT.
 - Event materials include: event room screens, event programs, pop-up banners, etc.
- b) Branding in Sunnyvale: A CLIENT placard will be positioned on Plug and Play's Strategic Member wall seen by over 45,000 visitors annually.
- c) Web Community: Plug and Play will note CLIENT as a member on its website.

3. Authorization for use of Name, Trademark(s), Logo(s) and other Identifying Marks

3.1. As a condition of this Agreement, CLIENT hereby authorizes Plug and Play the right to use CLIENT'S logo and trademarks ("Marks") in the following manner:

- A sign on the Main Lobby Member Wall at Plug and Play
- A sign on the Supply Chain Wall at Plug and Play
- Inclusion of CLIENT'S name and logo on the Corporate Member page at www.plugandplaytechcenter.com

for the term of the Agreement and shall promptly remove all such placements within 30 days of the termination of the Agreement.

3.2. In any other instance, Plug and Play will ask for written permission from CLIENT, which shall not be unreasonably withheld. The request for permission and the grant of permission may be delivered and received via email or other forms of electronic communication such as text messages.

3.3. CLIENT shall retain all and any intellectual property rights, title or interest in or to any of the Marks used by Plug and Play and Plug and Play shall comply with the CLIENT's branding guidelines and execute the CLIENT's terms and consent for brand use.

3.4. CLIENT may use and publish Plug and Play's name, logo and trademarks ("Plug and

Play Marks”) in its marketing and promotional material with Plug and Play’s prior written consent. For the avoidance of doubt, Plug and Play shall retain all and any intellectual property rights, title or interest in or to any of the Plug and Play Marks used by CLIENT.

4. Intellectual Property

- 4.1. Plug and Play shall own no right, title and interest in and to all intellectual property created by CLIENT or any technology startup company introduced to CLIENT through the services provided by Plug and Play in connection with this Agreement, including without limitation, all logos, trademarks, names, ideas, concepts, creative materials, promotional materials, advertising, and graphics, including all copyrights and proprietary rights therein, and any inventions and discoveries first conceived or developed, whether or not protected by patent, trade secret or copyright.
- 4.2. If Plug and Play and CLIENT desire to develop jointly any intellectual property during the Term of the Agreement, then they shall execute a non-disclosure agreement and subsequent separate development or applicable agreement(s) prior to starting any such development. The applicable agreement(s) shall include, among other things, the parties’ mutual understanding about ownership, exclusivity, use and commercialization of any developments.

5. Confidentiality

- 5.1. While involved the Parties will be exposed to certain valuable confidential information that each deems confidential (hereafter the “Confidential Information”). This Confidential Information includes, but is not limited to, trade secrets, processes, studies, statistics, writings, files, procedures, business plans, marketing plans, business records, financial information, methods and techniques, customer and client lists, business contact list, intellectual property, and any and all information related to each Parties respective business. The Parties understand that each has invested substantial effort into developing this Confidential Information. Because unauthorized disclosure of the Confidential Information would irreparably damage the Parties, each agree to keep any information learned confidential. Parties agree that they shall not disclose, market, develop, or cause to be marketed the other Party’s Confidential Information without prior written consent. Business decision and discussions regarding the internal business matters of Plug and Play are confidential and not public information. Such information shall be used only to benefit of each Party. This confidentiality provision shall survive the termination of this Agreement, and shall last in perpetuity.
- 5.2. The obligations set forth in the section above shall not apply to any Confidential Information with respect to which each Party can demonstrate:
 - a) was in its possession prior to the time of disclosure by the disclosing Party hereunder and was not acquired directly or indirectly from the other Party.

- b) was in the public domain at the time of disclosure, or subsequently became part of the public domain through no fault of the receiving Party; or
- c) was legally received from a third party who represents in writing that it was not subject to a confidentiality agreement regarding the information.

- 5.3. All Confidential Information disclosed by the disclosing Party under this Agreement, whether in a tangible form (including, without limitation, information incorporated in computer software or held in electronic storage media) or during all and any oral communication, shall be and remain property of the disclosing Party.
- 5.4. Notwithstanding the obligation to not disclose Confidential Information, a Party that has received Confidential Information from the other Party is permitted to disclose such information if such Party is compelled by an order of a court of competent jurisdiction or a regulatory body, provided that the receiving party provides prompt notice (to the extent permitted by law) to the disclosing party of any proceedings seeking such an order, so that disclosing party has the opportunity to make representations to such court or regulatory body regarding the proposed disclosure.
- 5.5. The receiving party of Confidential Information shall, upon request of the disclosing party promptly return to the disclosing party the Confidential Information and all copies thereof in any form whatsoever under the power or control of the receiving Party or destroy such Confidential Information as directed by the disclosing party. Notwithstanding the foregoing, Receiving Party shall be permitted to retain a copy of such Confidential Information as is required by law or professional standards. Further copies of Confidential Information stored in the electronic backups of receiving party shall be destroyed in accordance with their ordinary life cycle.

6. Indemnity

- 6.1. Each Party shall defend, indemnify the other Party, its parents, affiliates, and each of their respective directors, officers, employees, shareholders and all of their respective successors and permitted assigns (the “Indemnified Parties”), from and against any and all suits, claims, actions, liabilities, losses, damages, costs and expenses (including, but not limited to, interest, penalties, reasonable attorneys’ fees and other expenses of litigation) and causes of action of whatsoever kind (collectively referred to as “Claims”) which may be incurred by, asserted against, or recoverable from any Indemnified Party arising out of or relating to any of the Services performed or accepted by each Party under this Agreement

7. Limitation of Liability

- 7.1. Except for the indemnification obligations above, the liability for either Party under this Agreement shall be limited to the total amount of fees paid by Client to Plug and Play and in no event shall either Party be liable to the other Party for any special, incidental, punitive, or consequential damages.

8. Term and Billing

8.1. See **Exhibit A** below for details.

9. Relationship of the Parties

9.1. Neither Party is, nor represents itself to be, an agent, employee, partner or joint venturer of the other Party. Neither Party shall, unless otherwise specified in this Agreement or in a writing signed by both Parties, make promises, representations or warranties that incur any liability for or on behalf of the other Party. The relationship of the Parties is non-exclusive unless otherwise specifically agreed to in writing by the Parties.

10. Notices

10.1. Any notices given under this Agreement shall be in writing to the following addresses:

Plug & Play, LLC

Attention: Mike Zayonc

Address: 440 N Wolfe RD, Sunnyvale, CA,
94085

Email: Mike@PnPTC.com

Purolator Inc.

Attention: Ricardo Costa

2727 Meadowpine Blvd., Mississauga ON
L5N 0E1

Email: ricardo.costa@purolator.com

11. Severability

11.1. If any provision of this Agreement shall be held to be invalid or unenforceable for any reason, the remaining provisions shall continue to be valid and enforceable. If a court or judicial authority finds that any provision of this Agreement is invalid or unenforceable, but that by limiting such provision it would become valid and enforceable, then such provision shall be deemed to be written, construed, and enforced as so limited but only to the minimal extent required to make the provision valid and enforceable.

12. Entire Agreement

12.1. This Agreement, together with all non-disclosure agreements (if any), Exhibits referenced herein (a) constitutes the entire Agreement between the parties regarding this specific subject matter; (b) is the complete and exclusive statement of the terms thereof; and (c) it supersedes all prior oral or written agreements between the parties with respect to this specific subject matter. Any modifications to the terms of this Agreement must be in writing and signed by an authorized representative of each party.

13. Force Majeure

13.1. Neither Party shall be liable for any delays in performance hereunder due to circumstances beyond its control including, but not limited to, acts of nature, acts of governments, delays in transportation, and delays in delivery or inability of suppliers to deliver. CLIENT shall have the option to terminate any and all obligations under this Agreement as amended by so notifying Plug and Play in writing if the delay in performance exceeds thirty (30) days from the originally agreed upon performance date.

14. Choice of Law

14.1. This Agreement shall be interpreted and enforced according to the applicable federal laws of United States of America and the state laws of California without application of its conflict of law or choice of law rules.

15. Assignment

15.1. This Agreement shall bind and be for the benefit of the Parties and their heirs, fiduciaries, and permitted successors and assigns. Neither party may assign its rights or delegate its obligations under this Agreement, except to a present or future affiliate upon written notice to the other party.

16. Representations and Warranties and Covenants

16.1. The Parties executing this Agreement on behalf of Plug and Play and CLIENT represent and warrant that they have the authority from their respective governing bodies to enter into this Agreement and to bind their respective companies to all the terms and Conditions of this Agreement.

16.2. Plug and Play represents and warrants that it has and covenants that it shall continue to have a “permanent establishment” in Canada, as defined in the *Income Tax Act* (Canada) for the duration of the Agreement, and in the event it does not, it shall promptly notify the CLIENT and the CLIENT shall be entitled to comply with withholding tax obligations.

16.3. Each Party covenants it will not infringe upon or misappropriate any copyright, trademark, or other intellectual property right of any entity or individual person.

16.4. Each Party represents and warrants that it shall collect, use and disclose all personal information in accordance with the applicable privacy laws.

16.5. Each Party covenants to abide by and maintain adequate data security measures consistent with standards and best practices within the technology industry, and to

protect the Confidential Information from unauthorized disclosure or acquisition by an unauthorized person.

17. Other

17.1. If any provision herein will be deemed or declared unenforceable, invalid or void by a court of competent jurisdiction, such provision will be construed as nearly as possible to reflect the original intent of the parties and the same will not impair any of the other provisions contained herein, which will be enforced in accordance with their terms. Neither party's failure to insist upon strict performance of any provision of this Agreement will be construed as a waiver of any of its rights hereunder. This Agreement may be signed in counterparts, which together shall be one contract. Faxed or scanned signatures will be treated as original.

(Signature page follows)

Acknowledged, Accepted and Agreed:

Plug & Play, LLC
Represented by:

DocuSigned by:



A4CC8D0003BB4F1...

Mike Zayonc
Founder, Supply Chain and Logistics

Date:
12/16/2021

Purolator Inc.
Represented by:



DocuSigned by:



06DB108B9101409...

Ricardo Costa
Title: Chief Information Officer

Date: 16 December 2021 | 5:27 PM EST

DocuSigned by:



Daniella Monaco

Title: Procurement Manager

Date: 16 December 2021 | 5:55 PM EST

Exhibit A: Fee Schedule

Description of Work	Segment Amount (USD)	Segment
Ecosystem Membership (Supply Chain)	\$150,000 (USD)	Dec 15, 2021 – Dec 14, 2022
Ecosystem Membership (Supply Chain)	\$150,000 (USD)	Dec 15, 2022 – Dec 14, 2023
Ecosystem Membership (Supply Chain)	\$150,000 (USD)	Dec 15, 2023 – Dec 14, 2024

Term, Termination, and Billing:

The term of this Agreement shall commence on the Effective Date and shall continue for thirty-six (36) months from the Effective Date (“Term”).

The CLIENT may terminate this Agreement:

- (a) without cause 30 days prior to the next Segment, in which case no additional Segment Amount will be payable; or
- (b) at any time in the event Plug and Play is (i) insolvent or files for creditor protection; or (ii) is in breach of the Agreement, provided that the CLIENT provides Plug and Play with notice and Plug and Play is not able to cure the breach within 14 days or some longer reasonable period set by the CLIENT. If the CLIENT terminates pursuant to (i) or (ii) above, the CLIENT shall not be obligated for any additional Segment payment.

CLIENT will be billed \$150,000 on the first date of Segment. Payment is due upon receipt of an invoice from Plug and Play.

Any and all prices stipulated in this Agreement are exclusive of value added tax (VAT) or any similar tax. Any VAT, goods and services tax (GST), or similar tax possibly due shall be paid by CLIENT, provided Plug and Play provides the CLIENT with a sufficiently detailed invoice